NOVEMBER 11, 2026 | COMMITTEE MEETING UPDATE

City of Cascade, Iowa
M-2 & Citywide Zoning
Draft Ordinance Redline

Existing text in black / proposed ordinance text in red / transcription and formatting corrections in blue

INDEPENDENT WORKING DRAFT — NOT CITY-ADOPTED LAW. The November 11 advisory-committee vote approved definitions for draft consideration only. The City Council has not enacted this document.

Four definitions approved for the committee draft

Definition	November 11 reported action
Data Center	Approved; exact 5–3 or 6–2 tally not independently confirmed.
Data Center Business	Approved; exact 5–3 or 6–2 tally not independently confirmed.
Sustainable Design	Approved unanimously; numerical tally not independently confirmed.
Hyperscale Data Center	Approved 5–3: 100,000 square feet or larger **AND** electrical demand **exceeding 60 megawatts**. No calendar-year or “annually” test was approved.

Scope: The full integrated comparison follows. The source redline lists 28 independently proposed §165.41 additions, of which only the four named above were reported approved at the November 11 meeting. The remaining definitions and all separate proposed performance standards — including a citywide hyperscale prohibition — are **not represented as committee-approved**.

Authority: Based on the repository's contemporaneous November 11 participant-reported record, not certified City minutes. The underlying existing-code baseline remains subject to City Clerk/Attorney confirmation of later enactments and numbering.

Reading guide: RED indicates text a future City ordinance would need to enact; BLUE indicates only spelling, layout, or transcription repair to existing text. Source links and legal notes are preserved in the redline. Historical original scans and the 86-term research glossary are intentionally excluded from this dated PDF.

M-2 AND CITYWIDE ZONING — ACTUAL REDLINE AGAINST CASCADE'S EXISTING ORDINANCE

City of Cascade, Iowa | Draft proposals for November 18, 2026

Independent legislative comparison — NOT ADOPTED CITY LAW

Baseline: The existing §165.11(A)–(G)(1) text preserved in Cascade's zoning scan, with enacted 2022 B(18), is reproduced below in **black**. Selected existing §165.12 and §165.41 provisions appear in black at their affected locations. The City Code publisher expressly states that the separate 1992 zoning ordinance and amendments remain saved from repeal; the online code does **not** consolidate the full zoning ordinance. Therefore this baseline is **source-grounded but not a certified current-law consolidation**. The City Clerk/Attorney must verify subsequent amendments and current numbering, **including Ordinance 265-93 (M-2), Ordinance 126-09 (zero-lot-line buildings in C-1/M-1/M-2), Ordinance 05-22 (fitness uses), and Ordinance 19-24 (fences)**, all identified in the City Code publisher's amendment index. A 2009 proposed text marked DRAFT in the scan is **not proof that Ordinance 126-09 was never enacted**; the index lists that enactment, but its precise operative text still requires reconciliation. **This redline must not be represented as a certified fully consolidated 2026 code.**[1516]

Notation (based on the ordinance in force, not changes between project drafts):

Marking	Actual meaning
BLACK — EXISTING	City ordinance text and enacted B(18). Existing words are not silently amended or repealed.
RED — NEW/AMENDED LAW PROPOSED	Text the City would add through an ordinance amendment: B(19), D(8), G(2)–G(19), §165.12(17) and selected §165.41 definitions. New provisions are **not in current zoning law**.
BLUE — CORRECTIONS TO EXISTING SOURCE	Only source transcription spelling/punctuation or layout corrections, with the original spelling separately disclosed. Blue is **not a proposed new substantive duty**.
BLACK/BLUE — EDITORIAL NOTE	Explanations outside enactable ordinance text. The November 11 vote approved **definitions**, not the separately proposed citywide Hyperscale ban or new noise/ generator hours.

Redlining rule: Entire newly added subsections are red, **including all their numerical standards**, because existing M-2 does not contain them. The fact that an early project draft had different noise limits or generator hours is **not** a blue correction to current City law. The separate 86-term research appendix is not part of this ordinance or the next packet. The current clean proposed amendment remains available separately.

EXISTING §165.11 M-2 CODE (BLACK) WITH PROPOSED ADDITIONS (RED)

A. Statement of Intent

The "M-2" Heavy Industrial District is intended to accommodate general manufacturing and related uses of a heavy industrial character while providing protection from harmful effects to existing and future land uses in other districts.

B. Permitted Principal Uses and Structures

> **BLUE - FORMAT ONLY:** The scan prints permitted uses and off-street parking in two columns over two pages. This consolidated table retains every original numbered use and parking/loading ratio, reorganized for readable comparison. The word "faction" is corrected to "fraction" in blue where the original clearly refers to a portion of floor area. The original scan is preserved unchanged.[15]

Existing use	Permitted principal use or structure	Minimum required off-street parking or loading
1.	Farm implement sales, service, repair, and assembly.	1 space/300 sq. ft. of sales service or office floor area.
2.	Automotive and truck sales, service and repair.	1 space/300 sq. ft. of sales service or office floor area.
3.	Automobile paint and body shop.	1 space/300 sq. ft. of sales service or office floor area.
4.	Building material sales and storage.	1 space/300 sq. ft. of sales service or office floor area.
5.	Manufacturing, assembly and processing uses, but not including the manufacture, processing or blending of fertilizers, pesticides, insecticides or other chemicals, fuels or petroleum products that are combustible, explosive or of toxic nature.	1 space/employee plus 1/vehicle used by the industry.
6.	Concrete products manufacture and central mixing and proportioning plant.	1 space/employee plus 1/vehicle used by the industry.
7.	Wholesaling, warehousing or storage but not including the bulk storage of liquid fertilizer, agricultural chemical or petroleum products.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
8.	Contractor's office, shop and storage yard.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
9.	Grain elevator and storage bins.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
10.	Feed milling.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.

Existing use	Permitted principal use or structure	Minimum required off-street parking or loading
11.	Veterinarian's office and kennel.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
12.	Truck and freight terminal.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
13.	Welding and machine shop.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
14.	Plumbing, heating, air conditioning and sheet metal shop.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
15.	Railroads and public utilities including storage and maintenance yards and buildings.	1 off-street loading space for each 5,000 sq. ft. of floor area or fraction thereof.
16.	Drive-in eating or drinking establishments.	5 spaces plus 1 space/50 sq. ft. of floor area.
17.	Mini warehouse.	Adequate parking and driveway areas shall be provided around the building's perimeter, subject to approval.

18. Fitness Center or Exercise Type Business (already enacted October 10, 2022). Parking Requirement - 1 space/200 sq. ft. of floor area devoted to such purpose. **This entry was enacted under Ordinance 05-22 and is not a newly proposed red addition.**[16]

> **RED — NEW §165.11(B)(19) — AFTER ENACTED B(18) ●**
>
> **19. Data Center.**
>
> A Data Center as defined in Section 165.41 of this Ordinance, expressly excluding a Hyperscale Data Center. Hyperscale Data Centers are prohibited in all City zoning districts as provided in proposed Section 165.12(17).
>
> **Minimum required off-street parking:** one space per employee on the largest regularly scheduled shift, plus one space for each company vehicle regularly stationed at the premises.

C. Permitted Accessory Uses and Structures

1. Uses and structures clearly incidental and necessary to the permitted principal uses of this district.
2. Temporary buildings used in conjunction with construction provided such buildings are removed promptly upon completion of the construction work.
3. Dwelling units for watchmen or caretakers employed on the premises provided that an open yard of at least 2,400 sq. ft. is reserved and maintained for use by the occupants.
4. Satellite receivers.

D. Special Exception Uses and Structures

Subject to Section 165.34(2) and other requirements contained herein, the Board of Adjustment may permit the following:

1. Stockyards, loading pens, slaughter houses and handling or processing of animal by-products, poultry processing plants, buying stations and/or sale barns and yards, provided that it is not closer than one fourth (1/4) mile to any dwelling unit other than that of the owner or operator, or any park, school, church or place of public assembly; that the provisions for drainage, sanitation, waste disposal, and fly control are approved by the County Health Officer; that it is located so that prevailing winds will not cause dust or odors to create a nuisance for developed properties in the vicinity; and that one (1) parking space for each employee and 1 space for each vehicle used by the industry be provided. An additional 25 parking spaces shall be provided for sale barns.

2. Bulk storage of petroleum products, liquid fertilizers, and agricultural chemicals provided that such use is not closer than 300 feet to a dwelling or place of public assembly and that one parking space for each vehicle used by the industry be provided.

Source note for D(2): The printed words above are readable in the source scan, but that scanned page also has dark, handwritten lines over portions of D(2). **This reprint does not construe the ink marks as legally adopted deletions.** The City Clerk must determine whether a later adopted ordinance altered D(2).[15]

3. The following uses provided that they are not closer than 1000 feet to any dwelling unit other than that of the owner or operator, or any park, school, church or place of public assembly; that 1 off-street parking space for every 2 employees and 1 off-street space for each company vehicle shall be provided.

a. Chemical plants.

b. Explosive manufacture or storage.

c. Fertilizer blending and manufacture.

d. Garbage, offal, or dead animal reduction.

e. Refining of petroleum and natural gas and their products.

4. Auto wrecking and junkyards on sites of 5 acres or more provided that the front yard be maintained as an open space free of weeds and debris; that the site be enclosed with a 6-foot-high fence or a suitable landscape planting that must screen the operation from the view of adjacent public streets and places of public assembly, parks, recreation areas, and residential properties; and that a minimum of 1 off-street parking space for each employee and 1 off-street space for each vehicle used by the facility be provided.

5. Communications stations and towers provided that they are not closer to a dwelling or place of public assembly than a distance equal to one-half their height, that will not interfere with the operation of any airport or landing strip, and that 1 off-street space for each vehicle used by the facility be provided.

6. An on-site free-standing business identification sign up to 75-feet in height provided the sign is a distance equal to one-half its height from neighboring buildings, maintains 7.5-feet horizontal clearance and 12.5-feet vertical clearance from overhead power lines, and the sign is designed and built to withstand 100-mph winds. Applicant must demonstrate a clear and compelling need for the special exception.

7. An adult-oriented establishment provided the establishment is not in or within sixteen hundred (1,600) feet of the borders of a residential district; any church, synagogue, mosque, temple, or other place of religious worship; any public or private school offering general education for students between the years of Kindergarten and Twelfth grade; of any daycare home or daycare business; any public park or playground. For purposes of this section, bike paths, trails, waterways, and boat launches shall not be deemed a public park; any other adult entertainment business; or any existing establishment selling alcoholic beverages for

consumption on premises. The above cited distances shall be measured by following a straight line, without regard to intervening buildings, from the nearest point of the property parcel upon which the proposed adult entertainment business is to be located, to the nearest point of the parcel of property or zoning district boundary line from which the proposed adult entertainment business is to be separated. The definitions of adult-oriented establishments in Chapter 124.02 of the Cascade Code of Ordinances are hereby incorporated by reference.

RED — NEW §165.11(D)(8) — AFTER EXISTING D(7) ●

8. Major Industrial Facility.

Any otherwise permitted principal use within the M-2 District meeting one or more of the following thresholds shall require Special Exception approval pursuant to Section 165.34(2). This special-exception classification does not authorize a Hyperscale Data Center prohibited by Section 165.12(17):

1. Maximum anticipated coincident electrical demand of **five megawatts (5 MW) or greater**;
2. Anticipated industrial, process, cooling, or facility water demand of **25,000 gallons or more during any twenty-four-hour period**;
3. Aggregate stationary electrical generation capacity, excluding fire pumps, of **two megawatts (2 MW) or greater**;
4. Aggregate stationary battery or other electrical-energy-storage capacity of **five megawatt-hours (5 MWh) or greater**; or
5. A material expansion of an existing facility that causes the facility to exceed any threshold above.

The requirements of this subsection shall apply **without regard to the business type, technology, product, customer, tenant, ownership structure, or industrial process involved.** Similar physical impacts shall be treated consistently, and the City shall document the comprehensive-plan and public-welfare rationale for each objective threshold.[23]

E. Minimum Lot Area, Yard Requirements, and Maximum Height

BLUE - FORMAT ONLY: Reorganized the original three-column dimensions table as a labeled list; the numeric limits are unchanged.

- **Minimum lot area / width:** None.
- **Minimum front yard:** 25 feet.
- **Minimum rear yard:** 25 feet.
- **Minimum side yard:** 20 feet.
- **Minimum street-side yard, corner lot:** 20 feet.
- **Maximum height:** 60 feet.

F. Permitted Signs

1. Billboards and advertising signs provided:

a) That they are not within 75 feet of a highway intersection, highway structure, residence, park, school, cemetery, public or semi-public building.

b) That they are not within 150 feet of another billboard or advertising sign.

c) That they do not exceed 300 sq. ft. in area.

2. Trade, business or industry identification signs for the firm located on the site provided that:

a) Free standing signs shall not exceed 150 square feet in area or 25 feet in height.

b) Signs mounted flush on the wall of a building shall not exceed 10% of the area of the wall of the building on which they are located or 200 square feet, whichever is smaller.

c) Overhanging signs, attached to a building shall not project above the height of the building, or more than four (4) feet from the wall of the building and shall not have more than 100 square feet of area.

3. All signs shall be maintained in a neat and presentable condition and in the event that they shall become illegible or their use shall cease, they shall be removed promptly and the area occupied restored to a condition free from refuse and debris.

4. See Supplementary District Regulations (Section 165.12).

G. Special Requirements

1. Supplementary District Regulations (Section 165.12).

G(1) is original, current baseline language and is not deleted or replaced in this proposal.[15]

G(2). Uniform Applicability — proposed addition

RED — NEW §165.11(G)(2) ●

The requirements of this subsection apply uniformly to M-2 uses, structures, and operations unless a provision expressly establishes an objective physical or operational threshold. No requirement shall be imposed, waived, or varied solely because of the identity of the owner, operator, tenant, customer, industry, computing workload, product, or business model.

A lawful preexisting use, structure, or condition shall be treated in accordance with Sections 165.14 through 165.20 and other applicable law. To the maximum extent legally permissible, new construction, material expansion, replacement equipment, and materially modified operations after the effective date shall comply with the standards applicable to that work or modification.

G(3). Site Development Plan — proposed addition

RED — NEW §165.11(G)(3) ●

Before issuance of a building permit for a new principal M-2 use or Major Industrial Facility, the applicant shall submit an engineered site development plan identifying, as applicable:

- buildings and structures;
- parking and loading areas;
- access roads;
- exterior mechanical and cooling equipment;
- generators;
- electrical substations and transformers;
- energy-storage systems;
- fuel and chemical storage;
- water and sewer connections;
- stormwater facilities;
- exterior lighting;
- landscaping and screening;

- fences;
- property boundaries; and
- existing sensitive receptors located within 1,000 feet of the property.

For a Major Industrial Facility, the plan shall additionally identify maximum anticipated electrical load, water demand, stationary generation capacity, fuel storage, cooling technology, principal noise-generating equipment, and proposed phasing.

For any Major Industrial Facility using stationary backup or on-site generation, the applicant shall provide a generator schedule identifying each engine's proposed manufacturer/model, rated electrical and thermal capacity, fuel type, exhaust configuration, fuel tank and containment, anticipated emergency and non-emergency operating modes, reasonably foreseeable simultaneous-operation scenarios, planned testing frequency and duration, and applicable state or federal emissions permits or permit-exemption determinations. Information requiring legitimate security protection may be submitted in an appropriately redacted public version and a protected version, only as authorized by Iowa law. The City shall not purport to issue or replace air-quality permits.

G(4). Operational Noise — proposed addition

RED — NEW §165.11(G)(4) ●

All M-2 uses shall be designed, constructed, operated, and maintained so that noise attributable to the use does not exceed the following standards, measured in accordance with generally accepted professional acoustic practice:

a. M-2 property-line standard: The facility-attributable one-hour sound level at any property boundary shall not exceed **65 dBA and 75 dBC from 7:00 a.m. to 10:00 p.m.; or 60 dBA and 70 dBC from 10:00 p.m. to 7:00 a.m.** Compliance with the sensitive-receptor measurement provisions below is assessed separately.

b. Residential or sensitive-receptor standard: At each existing dwelling, school, licensed child-care facility, hospital, nursing facility, place of worship, public library, or comparable occupied sensitive use, compliance shall be evaluated **inside the closest normally occupied room on the side of the structure nearest the M-2 noise source**. The initial assessment shall include the nearest existing qualifying occupied structure. Additional qualifying structures shall be evaluated where source orientation, terrain, or shielding could produce higher exposure.

The sound-level meter microphone shall be placed **within five (5) feet of the interior face of the nearest source-facing exterior wall**, but **at least 1.5 feet (0.5 meter) from that wall and other large reflecting surfaces**, where physically practicable, at approximately four (4) to five (5) feet above the finished floor. **All doors and windows shall be closed throughout the measurement. In a dwelling with a controllable forced-air HVAC blower, the fan control shall be set to ON for continuous operation during the entire indoor measurement, with the thermostat set within 65°F–75°F where reasonably practicable; the detailed protocol in subsection G(5) applies.** The qualified acoustical professional shall identify the room and measurement positions and document any necessary deviation from these placement requirements. The following **indoor, facility-attributable one-hour equivalent continuous sound levels (Leq,1h)** shall not be exceeded:

- **65 dBA and 75 dBC from 7:00 a.m. to 10:00 p.m.**; and
- **60 dBA and 70 dBC from 10:00 p.m. to 7:00 a.m.**.

c. Tonal noise: Where an industrial sound source produces a prominent recurring tone, whine, screech, or hum, the applicable A-weighted limit shall be reduced by five (5) decibels.

d. Measurement: The one-hour average is the energy-equivalent continuous sound level (Leq,1h), not an arithmetic mean of decibel readings. A qualified acoustical professional shall use a calibrated Type 1 or Type 2 sound-level meter appropriate for the purpose, identify A- or C-weighting, document meteorology for exterior measurements, receiving location, background sources, room conditions for interior measurements, and source operating conditions. Outdoor source assessment shall use a documented ANSI/ASA S12.9 or successor environmental-noise assessment method. Indoor sensitive-receptor assessment shall use a documented method appropriate for room sound and low-frequency industrial noise, including ANSI/ASA S12.72 and S12.9 Part 7 where applicable.[1718] The City shall evaluate only facility-attributable noise using a documented background-noise adjustment procedure, accounting for unrelated indoor sound sources. Entry into an occupied structure for testing requires occupant consent or other lawful authority. If access is unavailable, the professional may report modeled indoor exposure with explicit assumptions, but shall not represent an outdoor measurement as a direct indoor compliance test. These measurement protocols shall not be construed to set a new statewide noise standard.[910]

e. Voluntary indoor access and outdoor alternative: The owner or lawful occupant of a sensitive-receptor structure may decline voluntary indoor noise testing. Declining consent does not invalidate a complaint or waive other remedies authorized by law. Interior or exterior entry onto private property requires consent or an independent lawful basis.

If indoor testing is declined, the qualified acoustical professional shall measure the facility-attributable Leq,1h outdoors at the point on the sensitive-receptor parcel boundary closest to the industrial property, provided the location is lawfully accessible and acoustically representative. Otherwise, a nearby lawfully accessible representative location shall be selected and the departure documented. The report shall document background conditions, microphone position, source operating conditions and any distance, shielding or reflection adjustments needed to estimate sound incident on the protected structure.

To assess the proposed indoor thresholds, the professional shall use documented, source-spectrum-appropriate outdoor-to-indoor noise reduction (OINR) or equivalent acoustical transmission-loss data for the building assembly, including walls, windows, doors and openings. Separate A- and C-weighted estimates and low-frequency assessment shall be provided where applicable. A calculated indoor result shall be labeled an **estimate**, not a direct indoor measurement. The applicable M-2 property-line limit remains unchanged.

Exterior-wall insulation R-values in Iowa energy requirements measure thermal resistance, not acoustical isolation. R-values may inform assembly identification but shall not be converted directly into dBA/dBC corrections. If reliable facade sound-reduction evidence is unavailable, a zero-decibel reduction may be used for cautious preliminary screening only, not by itself as conclusive proof of an indoor violation. The source of any acoustic correction and its uncertainty shall be disclosed.[2123]

G(5). Acoustic Study and Verification — proposed addition

RED — NEW §165.11(G)(5) ●

Every Major Industrial Facility shall provide, at the applicant's expense:

1. A **preconstruction baseline acoustic evaluation**, completed before site construction or grading materially changes ambient sound, documenting representative exterior A- and C-weighted hourly equivalent levels (Leq,1h) at nearby sensitive-receptor parcels and M-2 property boundaries. The evaluation shall include **voluntary indoor baseline measurements** inside nearby existing sensitive-receptor structures wherever the property owner or lawful occupant consents, as specified below;

2. A predictive acoustic model demonstrating compliance at property boundaries and nearby sensitive receptors under maximum reasonably anticipated operating conditions, including hot-weather conditions where relevant;
3. A post-construction compliance evaluation within sixty (60) days after commencing normal operations at reasonably representative load and weather conditions, or within a documented alternative period approved for commissioning constraints; and
4. A recurring compliance evaluation at least once every three (3) years, or following a material modification reasonably expected to affect noise levels.

Preconstruction indoor-receptor baseline and consent. The applicant shall identify the closest existing dwelling or other sensitive-receptor structures and any additional receptors reasonably expected to receive greater facility-related noise because of equipment orientation, terrain, or shielding. Before construction, the applicant shall offer the owner or lawful occupant of each selected structure an opportunity, **at no cost to that owner or occupant**, to consent to baseline testing within the nearest normally occupied room facing the proposed industrial source. When consent is granted, a qualified acoustical professional shall record representative **daytime and nighttime indoor dBA and dBC $L_{eq,1h}$ levels** under the placement, closed-door, and closed-window conditions described in subsection G(4)(b), together with operating indoor HVAC or ventilation conditions, existing sound sources, weather where relevant, and measurement times. The study should obtain paired exterior measurements at the same structure when lawful access and conditions permit. This provides a documented **preconstruction ambient baseline**, not a presumption that existing sound is attributable to the proposed facility.

Declined or unavailable access. Neither a property owner nor a lawful occupant shall be required by this subsection to permit voluntary entry. The applicant shall document reasonable efforts to offer indoor baseline testing and record whether consent was granted or declined without disclosing unnecessary private household information. Where indoor consent is declined or lawful access is unavailable, the preconstruction study shall perform the exterior alternative in subsection G(4)(e), including a source-facing receptor-parcel boundary measurement **only where lawful access is available**, or the nearest suitable lawful exterior location. Any estimated interior baseline shall use independently substantiated acoustical transmission-loss assumptions; **Iowa exterior-wall thermal R-values shall not be converted into decibel adjustments**. Estimated indoor levels shall be identified as *modeled*, not as measured values. A refusal of voluntary interior testing shall not be treated as a waiver of the applicable noise protections.

Thermostat and HVAC fan setting during indoor testing. During every indoor preconstruction baseline, postconstruction verification, and complaint-response acoustic measurement, **the forced-air HVAC circulation fan shall be set to ON for continuous operation throughout the entire measurement interval**, wherever the building has an occupant-controllable fan ON setting. **AUTO is not the default for this test.** For dwellings, the heating/cooling thermostat setpoint shall be within **65°F to 75°F (inclusive)** where reasonably practicable and consistent with occupant health and safety. Heating and cooling demand may still cycle normally in response to the thermostat; the blower must remain on between those calls. Do not deliberately force heating or cooling cycles. The qualified acoustic professional shall verify and record the actual continuous blower operation, fan speed or mode, system type, thermostat setpoint and mode, measured interior temperature, heating/cooling cycles, other ventilation, and any deviation. These identical test settings shall be used for the comparable preconstruction and postconstruction measurements, or differences must be explained and accounted for in the technical assessment. Continuous fan sound is part of the measured indoor background and may mask industrial noise; the report shall distinguish facility-attributable sound from HVAC sound using a technically appropriate method. Supplemental measurements under other fan settings may inform the assessment but do not replace the required fan-ON measurement. If no blower or continuous-ON control is present, or use would be unsafe or medically inappropriate, document the reason and

measure under representative existing conditions; lack of such equipment does not invalidate a complaint. The **65–75°F setpoint and mandatory fan-ON protocol are proposed local measurement conditions**, not Iowa residential code requirements.[25]

Evidence for a claimed increase after construction. A finding that a Major Industrial Facility **increased noise inside a neighboring sensitive-receptor structure** shall be supported by reliable evidence of the **preconstruction indoor baseline** and a comparable **postconstruction indoor level**, measured in the same room when practicable, **with exterior doors and windows closed**, using the same A- and C-weighted Leq,1h metrics and comparable daytime/nighttime periods, ventilation settings, and sound-source conditions. The analysis must establish that the later level is higher than the earlier level beyond the stated measurement uncertainty and must separately substantiate the amount **attributable to the facility**, rather than assuming all ambient sound comes from that facility. A preconstruction home need not have been silent; the relevant question is whether its indoor noise demonstrably increased because of the facility.[24]

Where an owner declined the preconstruction indoor evaluation, the City may consider credible earlier sound surveys, contemporaneous records, and the documented exterior-to-interior acoustic model described in subsection G(4)(e). An unsupported assertion of an increase alone shall not establish a violation **based solely on a change from preconstruction conditions**. This evidentiary requirement **does not prevent anyone from submitting a complaint**, does not require a historical baseline to investigate or enforce an **absolute indoor or M-2 property-line limit**, and does not displace rights or remedies under Iowa nuisance law.[924]

The required acoustic model and post-startup testing shall examine ordinary peak operations, reasonably foreseeable simultaneous generator testing or emergency backup operation, identifiable low-frequency or tonal equipment sources, and nearby residential and other sensitive receptors. Where safety or operational requirements prevent actual simultaneous generator testing, a qualified professional may combine measured source data with documented predictive modeling, with assumptions stated in the report.

Any separate structure-borne or ground-vibration concern must be evaluated with measurements appropriate to vibration (such as peak particle velocity), not inferred from dBA/dBC sound measurements. A numeric vibration ceiling is **not adopted in this draft** pending independent engineering and legal review.

The City may require reasonable corrective measures where testing demonstrates noncompliance.

G(6). Generator and Elevated-Noise Testing — proposed addition

RED — NEW §165.11(G)(6) ●

Routine and pre-planned testing of stationary generators or other equipment producing substantially elevated noise shall occur only between **6:00 a.m. and 8:00 p.m., Monday through Friday**, except where operation outside those hours is:

1. Required during an actual emergency;
2. Necessary to protect life, property, or critical equipment;
3. Required by a governmental agency, applicable code, manufacturer, utility, insurer, or reliability authority; or
4. Specifically authorized by the Zoning Administrator because the testing cannot reasonably be completed during ordinary testing hours.

This restriction applies uniformly to M-2 businesses operating such equipment. "Emergency generator" as classified for Iowa air-quality permitting follows applicable state air regulations; local zoning testing-hour rules do not alter air-permit classifications or authorize impermissible emissions.[8]

G(7). Generator Operating Records — proposed addition

RED — NEW §165.11(G)(7) ●

Any M-2 facility having aggregate stationary generation capacity of two (2) MW or more shall maintain records identifying:

- date and duration of each operation;
- whether the operation was emergency or non-emergency;
- reason for operation; and
- equipment operated.

Records shall be retained for at least three (3) years and made available to the City upon reasonable request for zoning-compliance purposes, subject to applicable public-record and confidentiality law.

G(8). Major Industrial Facility Setbacks — proposed addition

RED — NEW §165.11(G)(8) ●

Existing M-2 dimensional requirements shall remain applicable generally. In addition, for a new Major Industrial Facility:

1. A principal building shall be located at least **100 feet from a property boundary adjoining a residential zoning district**.
2. Stationary generators, exterior cooling equipment, large transformers, substations, compressors, industrial fans, and comparable exterior mechanical equipment shall be located at least **200 feet from a residential zoning district boundary**.
3. The Board of Adjustment may approve a reduced equipment setback, but never less than 100 feet, where an applicant-funded independent acoustic analysis demonstrates that all applicable noise standards will be met under maximum reasonably anticipated operating conditions.

Nothing in this subsection authorizes a setback reduction that conflicts with any other applicable code, easement, fire requirement, or utility clearance.

G(9). Exterior Lighting — proposed addition

RED — NEW §165.11(G)(9) ●

All new or replacement exterior lighting within the M-2 District shall:

1. Be fully shielded and directed downward;
2. Be designed to prevent direct glare onto residential property and public streets;
3. Not exceed **0.5 foot-candle at a residential zoning boundary**, excluding existing public street lighting; and
4. Use automatic controls or reduced lighting levels during periods when full illumination is unnecessary, except for safety, security, and emergency lighting.

G(10). Screening — proposed addition

RED — NEW §165.11(G)(10) ●

Exterior mechanical equipment, generators, fuel tanks, refuse areas, substations, and comparable industrial equipment visible from an adjoining residential district or public right-of-way shall be screened through landscaping, berms, walls, fencing, equipment enclosures, or a combination thereof.

Screening shall not interfere with required ventilation, fire access, utility clearance, security, or equipment safety.

G(11). Water Use and Cooling — proposed addition

RED — NEW §165.11(G)(11) ●

Any M-2 use reasonably expected to use **25,000 gallons or more of water in a twenty-four-hour period** shall provide:

1. Projected average and peak water demand;
2. Identification of the proposed water source;
3. Applicable Iowa Department of Natural Resources permits, approvals, or documentation, with any determination of a **regulated** or **nonregulated** water use made under Iowa Code §455B.261 and applicable implementing rules, not inferred from the City's impact-review threshold alone;[7]
4. An engineering analysis demonstrating adequate water supply without unreasonable interference with existing users;
5. Separate metering of material industrial or cooling-water use where practicable; and
6. Annual water-use reporting to the City.

Once-through cooling using potable municipal water is prohibited for new Major Industrial Facilities.

Closed-loop or non-evaporative cooling shall be preferred. An evaporative system may be approved where professional engineering demonstrates that the alternative will not create an unreasonable demand upon municipal water resources and adequately controls drift, plume, condensation, and icing.

G(12). Electrical Utility Verification — proposed addition

RED — NEW §165.11(G)(12) ●

Before issuance of a building permit for any M-2 use having maximum anticipated electrical demand of five (5) MW or more, the applicant shall provide written documentation from the serving electric utility confirming that:

1. The proposed maximum electrical demand has been disclosed;
2. Required utility infrastructure and service upgrades have been identified sufficiently for the utility to provide service;
3. Responsibility for project-specific utility improvements has been addressed between the utility and customer; and
4. The facility's electrical service may be constructed and operated in accordance with applicable utility, electrical, and safety requirements.

Nothing in this ordinance regulates electric rates, utility service territories, generation procurement, or matters preempted or otherwise committed by law to a public utility, electric cooperative, state agency, or federal authority.

G(13). Fuel, Batteries, Hazardous Materials, and Emergency Response — proposed addition

RED — NEW §165.11(G)(13) ●

A Major Industrial Facility shall provide an Emergency Response Plan to the City and appropriate emergency-response agencies before occupancy.

The plan shall identify, where applicable:

- emergency contacts;
- facility access;
- electrical disconnects;
- generator locations;
- fuel quantities and shutoffs;
- coolant and chemical inventories;
- battery-energy-storage systems;
- fire-suppression systems;
- evacuation procedures;
- spill response; and
- procedures for providing emergency responders access to the site.

The plan shall be reviewed following material facility modifications and at reasonable intervals requested by the City or responding agencies.

G(14). Heat Rejection, Drift, Condensation, and Icing — proposed addition

RED — NEW §165.11(G)(14) ●

No M-2 mechanical exhaust, cooling, or heat-rejection system shall be operated in a manner that causes ice, condensate, cooling-tower drift, mist, or similar discharge to accumulate upon an adjoining property or public right-of-way or create an unreasonable safety hazard.

G(15). Stormwater and Drainage — proposed addition

RED — NEW §165.11(G)(15) ●

All new M-2 development shall comply with applicable City, state, and federal stormwater requirements.

A Major Industrial Facility shall submit engineered stormwater calculations demonstrating that development will not cause an unlawful or unreasonable increase in off-site flooding, erosion, or drainage impacts, **subject to Iowa Code §364.3 limitations on municipal runoff and topsoil requirements**. An independently imposed more restrictive runoff standard may require the City to bear specified engineering, construction, or property costs, and shall not be presumed authorized by this zoning section.[12]

The property owner shall be responsible for repair of documented project-caused damage to City drainage infrastructure to the extent permitted by law.

G(16). Public Infrastructure — proposed addition

RED — NEW §165.11(G)(16) ●

Where an M-2 development creates a documented need for road, water, sewer, drainage, emergency-service, or other public improvements beyond existing system capacity, the City may require a development or infrastructure agreement allocating proportionate project-related costs to the applicant to the extent permitted by Iowa law.

This provision shall apply equally to every M-2 development creating the same type and degree of infrastructure burden.

Where substantial construction hauling is reasonably expected to affect City roads, the City may, pursuant to an independently authorized permit or written road-use agreement, require a preconstruction photographic/engineering condition survey, defined haul routes and axle/load limits, reasonable maintenance and restoration terms, postconstruction verification, and proportionate financial security supported by an engineering estimate. No fixed multiplier or new fee is prescribed here without legal review.

G(17). Decommissioning of Major Industrial Facilities — proposed addition

RED — NEW §165.11(G)(17) ●

An application for a Major Industrial Facility shall include a decommissioning plan describing:

1. Anticipated facility life;
2. Equipment and structures to be removed;
3. Environmental remediation and site restoration;
4. Estimated decommissioning cost;
5. Salvage assumptions; and
6. Proposed method of financial assurance.

A facility shall be considered abandoned when its principal industrial operation has ceased continuously for twelve (12) months, excluding temporary shutdowns caused by reconstruction, documented market conditions accompanied by evidence of a bona fide intent to resume operations, casualty, litigation, government order, utility interruption, or similar circumstances approved by the Zoning Administrator.

Following abandonment, decommissioning shall be completed within twelve (12) months unless extended for good cause.

The form and amount of financial assurance shall be established in a manner approved by the City Attorney and shall be reasonably related to the documented cost of decommissioning and site restoration.

A qualified professional's decommissioning cost estimate shall be reviewed at least once every three (3) years and following a material expansion or ownership/operator change that materially alters restoration obligations. The City may require adjustment of assurance to the reasonable documented cost of performance, including contingencies, only through a legally authorized and objectively administered instrument.

To the extent enforceable under Iowa law, approval conditions and any separate recorded agreement shall identify responsible owners and operators, notice requirements upon transfer, acceptable successor security, and procedures for default and lawful recovery. Private contracts shall not transfer away obligations imposed by law or approval conditions.

G(18). Material Expansion — proposed addition

RED — NEW §165.11(G)(18) ●

An approved Major Industrial Facility shall require an updated Special Exception review where a proposed modification would increase any of the following by **twenty percent (20%) or more** above the previously approved maximum:

- electrical demand;
- water demand;
- stationary generation capacity;
- energy-storage capacity;
- exterior mechanical-equipment capacity; or
- developed building area.

Crossing a Major Industrial Facility threshold for the first time shall require Special Exception approval regardless of percentage increase.

G(19). Compliance, Inspection, and Corrective Action — proposed addition

RED — NEW §165.11(G)(19) ●

The Zoning Administrator may require documentation reasonably necessary to verify compliance with conditions of approval and the objective standards of this section. Where specialized testing or engineering is reasonably required because of a credible compliance question involving a Major Industrial Facility, the City may require the owner or operator to provide qualified professional testing, subject to applicable law and any fee or cost-recovery provisions adopted by the City.

Each Major Industrial Facility shall submit a brief annual compliance certification to the Zoning Administrator by March 1 for the prior calendar year, identifying the facility owner and operator; material changes in electricity demand, generation equipment, cooling and water use; whether prescribed acoustic tests and generator logs have been maintained; reported material incidents or violations; and the status of financial assurance. The certification is a compliance statement, not automatic approval of unverified representations.

Where reasonably necessary and authorized by an adopted fee schedule or agreement, the City may retain or approve an independent qualified professional to review applicant studies and required remedial testing at reasonable, documented applicant cost. For complex matters, the City may require a deposit or escrow established through lawful procedures with an accounting and refund of unused amounts. The applicant must not control or direct the independent expert's findings.

Nothing in this section limits other remedies available under Chapter 165 or applicable law.

EXISTING §165.12 SUPPLEMENTARY DISTRICT REGULATIONS (BLACK) AND PROPOSED PROHIBITION (RED)

BLACK — existing §165.12(6), as printed in the preserved zoning scan; not changed by the proposal:

> **6. Proposed Use Not Covered In Ordinance.** Any proposed use not covered in this Ordinance as a Permitted Use or Special Exception shall be referred to the Planning and Zoning Commission for a

> recommendation as to the proper district in which such use should be permitted and the Ordinance amended as provided in Section 165.39 before a permit is issued for such proposed use.[15]

BLACK — existing §165.12(16), as printed in the preserved zoning scan; not changed by the proposal:

> **16. Subdivision Required.** Every owner of any lot or tract of land who shall subdivide the same into three (3) or more parts on or after the effective date of adoption of the original Subdivision Control Ordinance (June 9, 1975), shall have the plat of such subdivision approved by the City Council as provided in the Subdivision Control Ordinance (Title VI, Chapter 166, City Code of the City of Cascade, Iowa). All re-plats of existing lots in subdivisions shall comply with the procedures and standards of the Subdivision Control Ordinance.[15]

Source caution: The reproduced §165.12(6) and (16) paragraphs are the relevant bookends, **not a reprint of all existing §165.12(1)–(16)**. The separately enacted 2024 fencing amendment to §165.12(12) remains untouched. The City Clerk must verify §165.12's current numbering before adding (17).[16]

> **RED — NEW PROPOSED §165.12(17) — CITYWIDE HYPERSCALE PROHIBITION ●**
>
> **17. Hyperscale Data Centers - Prohibited in All Zoning Districts.**
>
> A Hyperscale Data Center, as defined in Section 165.41, is a prohibited land use in every zoning district regulated by this Ordinance within the City of Cascade's lawful zoning jurisdiction. A Hyperscale Data Center shall not be approved as a permitted principal use, accessory use, special exception, conditional use, or as a component of an otherwise permitted use. No zoning, development, building, or other City land-use approval shall be issued for the initial establishment, construction, conversion, or expansion of a facility to a Hyperscale Data Center.
>
> The Major Industrial Facility special-exception review in Section 165.11(D)(8) does not make a Hyperscale Data Center eligible for approval. Project phases and functionally integrated buildings or facilities under a unified development plan shall be reviewed together to determine whether the defined Hyperscale Data Center thresholds are met; separate bona fide facilities shall not be aggregated solely because they are neighbors. Any change to a lawful permitted Data Center that would meet both Hyperscale Data Center thresholds after the change is prohibited unless and until the governing zoning ordinance is lawfully amended.
>
> This subsection applies within the incorporated City and any territory in which Cascade has validly exercised municipal zoning jurisdiction under Iowa Code Section 414.23. It does not claim authority over unincorporated territory zoned by a county or other land beyond the City's legally established jurisdiction. It does not extinguish lawful existing nonconforming-use rights or displace appeal and variance authority independently granted by state law.[31]

> **BLUE — legislative-status note (not ordinance text):** The Nov. 11 committee **approved the Hyperscale Data Center definition 5–3**, but did **not** separately approve the proposed citywide prohibited-use clause. The City Council must use lawful Chapter 414 procedures, and §414.23 does not confer jurisdiction over all surrounding county land automatically.[31]

EXISTING §165.41 DEFINITIONS (BLACK) AND ADDITIONS (RED)

BLACK — existing introductory language (§165.41), preserved from the source:

> 165.41 Definitions. For the purpose of this Ordinance, certain terms and words are hereby defined. Words used in the present tense shall include the future; the singular number shall include the plural and the plural the singular; and the word “shall” is mandatory and not directory.[15]

> **BLUE — Source-layout note only:** The entire existing glossary remains in force except as lawfully amended. No new local Building, Structure, Lot, Dwelling Unit, Accessory Use or Construction definition is proposed.

Proposed additions to §165.41

The four committee-approved definitions are reproduced as reported on November 11, 2026, without alternate local rewording. Single canonical source and legal citations. The remaining definitions in this redline are additional **independent proposals**, not reported committee-approved definitions.

The 28 proposed terms below are RED additions to existing §165.41. The City already defines Building, Structure, Lot, Dwelling Unit, and Accessory Use; those definitions are **not added again**. The text below does not delete the other currently enacted definitions. The Nov. 11 committee vote approved the definitions of Data Center, Data Center Business, Sustainable Design, and Hyperscale Data Center; it did **not** adopt this project's other definitions or the separate citywide prohibition.[62730]

RED — NEW §165.41 DEFINITION (1 OF 28) ●

Data Center: A structure or building rehabilitated or constructed to house a group of networked server computers in one physical location in order to centralize the storage, management, and dissemination of data and information pertaining to a particular business, taxonomy, or body of knowledge. A data center business’s facility typically includes the mechanical and electrical systems, redundant or backup power supplies, redundant data communications connections, environmental controls, and fire suppression systems.[5]

RED — NEW §165.41 DEFINITION (2 OF 28) ●

Hyperscale Data Center: A Data Center meeting both of the following conditions:

1. **100,000 square feet or larger.**
2. **Electrical demand exceeding 60 megawatts.**[30]

RED — NEW §165.41 DEFINITION (3 OF 28) ●

Data Center Business: An entity whose business among other businesses, is to operate or lease a data center in the city of cascade.[5]

RED — NEW §165.41 DEFINITION (4 OF 28) ●

Sustainable Design: Construction design that reduces negative environmental effects and improves occupant health and comfort through resource conservation, waste minimization, and healthier environments.[26]

RED — NEW §165.41 DEFINITION (5 OF 28) ●

Major Industrial Facility: An M-2 use exceeding any one threshold in proposed §165.11(D)(8): 5 MW coincident demand, 25,000 gallons in any 24 hours, 2 MW aggregate stationary generation, or 5 MWh storage. Also includes a modification that crosses a threshold.

RED — NEW §165.41 DEFINITION (6 OF 28) ●

Material Expansion: A modification increasing an approved maximum by 20 percent or more for electrical demand, water demand, stationary generation, energy storage, exterior mechanical capacity, or developed building area, or crossing a Major Industrial Facility threshold for the first time.

RED — NEW §165.41 DEFINITION (7 OF 28) ●

Sensitive Receptor: An occupied dwelling, school, licensed child-care facility, hospital, nursing facility, place of worship, public library, public park facility, or comparable occupied use requiring protection from continuous industrial noise.

RED — NEW §165.41 DEFINITION (8 OF 28) ●

Ambient Noise / Baseline Sound: The sound environment at a designated receiving location without the regulated facility's incremental contribution, determined under representative day, night, and meteorological conditions. Ambient noise is not the Iowa air-quality term "ambient air."[810]

RED — NEW §165.41 DEFINITION (9 OF 28) ●

Facility-Attributable Noise: The sound contribution attributable to a regulated M-2 use at the specified receiving point, including reasonably foreseeable simultaneous operation of equipment; exclude unrelated transportation, natural, and third-party background noise through an approved, documented acoustical procedure.[10]

RED — NEW §165.41 DEFINITION (10 OF 28) ●

dBA: A-weighted decibels of sound pressure, measured with calibrated equipment using the applicable professional noise measurement method.

RED — NEW §165.41 DEFINITION (11 OF 28) ●

dBC: C-weighted decibels of sound pressure, which place greater relative weight on low-frequency sound than A-weighting.

RED — NEW §165.41 DEFINITION (12 OF 28) ●

Hourly Average Sound Level (Leq,1h): The energy-equivalent continuous sound-pressure level over sixty (60) minutes, expressed using the specified A- or C-weighting; intermittent contributions are averaged on an acoustic energy basis, not by taking an arithmetic mean of decibel values. The qualified professional shall identify source operation, background sound, measurement location, and calibration.[10]

RED — NEW §165.41 DEFINITION (13 OF 28) ●

Prominent Tone / Tonal Noise: An identifiable recurring or steady audible frequency component distinguishable from neighboring sound bands when evaluated under the ordinance's specified professional acoustical method.

RED — NEW §165.41 DEFINITION (14 OF 28) ●

Acoustic Study: A qualified professional's documented baseline survey, maximum-design-operation model, receptor analysis, assumptions, equipment schedule, and verification protocol.

RED — NEW §165.41 DEFINITION (15 OF 28) ●

Maximum Anticipated Coincident Electrical Demand: The greatest reasonably anticipated simultaneous electrical load, expressed in MW, for the complete site during normal or design-maximum operation. A sum of independent equipment nameplate ratings does not establish coincident site demand without a documented load calculation.

RED — NEW §165.41 DEFINITION (16 OF 28) ●

Aggregate Stationary Generation Capacity: The sum of rated electrical outputs of all stationary generators covered by the section, in megawatts, excluding fire pumps only where expressly provided.

RED — NEW §165.41 DEFINITION (17 OF 28) ●

Aggregate Electrical-Energy-Storage Capacity: The summed rated stored electrical energy of covered stationary storage systems, in megawatt-hours, using documented nameplate energy ratings.

RED — NEW §165.41 DEFINITION (18 OF 28) ●

Exterior Mechanical Equipment: Permanently located outdoor fans, compressors, cooling equipment, generators, transformers, heat-rejection systems, and comparable mechanical installations serving an M-2 principal use.

RED — NEW §165.41 DEFINITION (19 OF 28) ●

Residential Zoning District Boundary: The official delineation between an M-2 parcel or district and land designated residential by the City's controlling zoning map.

RED — NEW §165.41 DEFINITION (20 OF 28) ●

Sensitive-Receptor Measurement Location: The specified exterior wall, occupied outdoor-use area, or other objectively identified receiving point at a sensitive receptor, documented on an approved site/acoustic plan.

RED — NEW §165.41 DEFINITION (21 OF 28) ●

Once-Through Cooling: A process in which municipal potable water passes through a cooling system once and is discharged rather than being recirculated for heat rejection.

RED — NEW §165.41 DEFINITION (22 OF 28) ●

Closed-Loop Cooling: A recirculating coolant system intended to keep working fluid contained, subject to any limited makeup or process losses specifically disclosed.

RED — NEW §165.41 DEFINITION (23 OF 28) ●

Emergency Response Plan: A written, site-specific plan documenting access, contacts, utility isolation, fuel, chemicals, battery systems, suppression, evacuation, spills, and coordination with first responders.

RED — NEW §165.41 DEFINITION (24 OF 28) ●

Decommissioning: The safe disconnection, dismantling, lawful removal, cleanup, and site restoration work required at the end of a covered facility's life.

RED — NEW §165.41 DEFINITION (25 OF 28) ●

Abandonment: Continuous cessation of a facility's principal approved industrial operation for the period specified in §165.11(G)(17), subject to its listed reasonable exceptions.

RED — NEW §165.41 DEFINITION (26 OF 28) ●

Financial Assurance: A surety, letter of credit, escrow, performance bond, trust, or other legally authorized and enforceable arrangement in a reasonable amount covering documented decommissioning and site restoration duties. The statutory definition applicable to sanitary-disposal facilities under Iowa Code §455B.301(9) does not itself grant the City authority to impose that requirement on M-2 data centers; a separate legal basis must be confirmed by the City Attorney.[13]

RED — NEW §165.41 DEFINITION (27 OF 28) ●

Independent Qualified Professional: An appropriately licensed or credentialed expert with relevant technical competence and no financial or managerial interest that would compromise independent evaluation.

RED — NEW §165.41 DEFINITION (28 OF 28) ●

Material Modification (for monitoring): A change in equipment, site layout, generation operation, or other covered operation reasonably likely to change the regulated environmental or infrastructure impact.

BLUE COPYEDIT REGISTER — CHANGES TO SOURCE TRANSCRIPTION ONLY

Original scan or enacted text	Blue correction / presentation in this document	Classification
B(1)–B(17) were printed as a two-column use/parking table across PDF pages 45–46.	Consolidated into one three-column table with original numbers, use descriptions, and parking/loading ratios.	**FORMAT ONLY**
B(5): "Manufacturing, assemble and processing uses"	"Manufacturing, **assembly** and processing uses" (blue highlighted word)	**GRAMMAR ONLY**, preserves activity category
B(7)–B(15): "or faction thereof"	"or **fraction** thereof" (each occurrence blue)	**SPELLING ONLY**, preserves 5,000-square-foot loading-space ratio
D(4): "6 foot high fence"	"**6-foot-high** fence" (blue)	**PUNCTUATION ONLY**, preserves six-foot height
B(18) adopted 2022: "1space/200 sq ft."	"**1 space/200 sq. ft.**" (blue)	**SPACING / ABBREVIATION ONLY**, preserves 1-per-200 parking ratio
E: lot area, yards and height originally in a small three-column table.	Labeled list preserving None, 25 ft / 25 ft / 20 ft / 20 ft / 60 ft.	**FORMAT ONLY**
Heading capitalization and line breaks from typewritten source.	Standardized bold section headings and readable paragraphs.	**FORMAT ONLY**

Not silently corrected: The scanned D(7) uses the phrase "of any daycare home or daycare business"; D(5) uses "that will not interfere" and B(1)–(4) use "sales service or office floor area." Those phrases may warrant cleanup, but they remain as printed because editing them could change the legal meaning. They require City Attorney review. Likewise, the handwritten strike marks in the scanned D(2) remain **unverified** and are not treated as enacted deletions.

LEGAL STATUS AND ADOPTION CHECKLIST

1. Obtain the **complete current certified M-2 ordinance**, including amendments after the original scan. This document is a comparative draft, not a certification.
2. Preserve already enacted B(18) and G(1); confirm that new B(19), D(8), G(2)–(19) are the next available numbers before publication.

3. Retain the existing F sign provisions and E dimensional rules; the proposed G(8) setbacks are additional **conditional** standards, not a rewriting of ordinary M-2 setbacks.
4. Check D(2) against the enacted ordinance history; handwritten strike marks are not legislation.
5. Review the proposed Chapter 165.41 additions alongside the existing definitions and the state uniformity rule, Iowa Code §414.2.
6. Verify that blue copyedits do not change legal meaning; if the City proposes to rewrite an operative requirement, mark it **red** and adopt it through the required legislative process.
7. This integrated comparison is **NOT a final ordinance**. The clean proposed amendatory language is available separately; counsel should verify enactment mechanics and legal standards.

CHICAGO-STYLE NUMBERED NOTES - DOCUMENTARY SOURCES

The numbered notes below cite the preserved zoning scan, known later municipal amendments, and sources for the November 11 definitions and additional November 18 working proposals. These citations and editing annotations are noncodified background.

Superscript note markers in this proposal point to these numbered sources. Notes are documentary authorities and **are not operative zoning terms**. Project-specific engineering assumptions and proposed numerical thresholds still require independent validation.

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1. Iowa General Assembly, *Iowa Code* §414.1 (2026), municipal regulation of building location and industrial land use, https://www.legis.iowa.gov/docs/code/2026/414.1.pdf. ↩
2. Iowa General Assembly, *Iowa Code* §414.2 (2026), uniformity for each class or kind of building throughout each zoning district, https://www.legis.iowa.gov/docs/code/2026/414.2.pdf. ↩
3. Iowa General Assembly, *Iowa Code* §414.3 (2026), comprehensive-plan and health, safety, conservation, and public-facility considerations, https://www.legis.iowa.gov/docs/code/2026/414.3.pdf. ↩
4. Iowa General Assembly, *Iowa Code* §414.12(2)-(4) (2026), Board of Adjustment special exceptions and variances, including 2025-added subsection (4), https://www.legis.iowa.gov/docs/code/2026/414.12.pdf. ↩
5. Iowa General Assembly, *Iowa Code* §423.3(95)(f) (2026), definitions applicable to data-center tax treatment, https://www.legis.iowa.gov/docs/code/2026/423.3.pdf. ↩↩
6. Iowa General Assembly, *Iowa Code* §103A.3 (2026), construction and building definitions, https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf; City of Cascade, *Chapter 165 Zoning Ordinance*, §165.41, transcription in this repository: https://github.com/ttbakiatwoam/cascade-data-center/blob/master/dataset/cascade-zoning/CHAPTER-165-ZONING-ORDINANCE.md. ↩
7. Iowa General Assembly, *Iowa Code* §455B.261 (2026), water allocation, beneficial use, nonregulated use, and regulated use, https://www.legis.iowa.gov/docs/code/2026/455B.261.pdf. ↩
8. Iowa Department of Natural Resources, *Iowa Administrative Code* 567—22.1, air-quality definitions and emergency generators, https://www.legis.iowa.gov/docs/iac/rule/02-25-2026.567.22.1.pdf. ↩↩
9. Iowa General Assembly, *Iowa Code* §657.1 (2026), nuisance, https://www.legis.iowa.gov/docs/code/2026/657.1.pdf. ↩↩
10. Acoustical Society of America / American National Standards Institute, *ANSI/ASA S12.9*, environmental sound measurement and assessment standards, https://webstore.ansi.org/ (exact current edition and applicable part require acoustical expert verification). ↩↩↩↩
11. Iowa General Assembly, *Iowa Code* §§455B.131, 455B.381, and 455B.411 (2026), air contaminants, hazardous conditions, and waste-management terms, https://www.legis.iowa.gov/docs/code/2026/455B.pdf. ↩
12. Iowa General Assembly, *Iowa Code* §364.3 (2026), limitations on municipal topsoil and stormwater runoff requirements, https://www.legis.iowa.gov/docs/code/2026/364.3.pdf. ↩
13. Iowa General Assembly, *Iowa Code* §455B.301(9) (2026), definition of financial assurance instrument for sanitary disposal projects, https://www.legis.iowa.gov/docs/code/2026/455B.301.pdf. ↩
14. Iowa Department of Natural Resources, *Iowa Administrative Code* 567—60.1 (2026), wastewater and incorporated stormwater definitions, https://www.legis.iowa.gov/docs/iac/rule/567.60.1.pdf. ↩

15. City of Cascade, *Chapter 165 Zoning Ordinance*, original scanned M-2 Heavy Industrial District, "Entire zoning code-1.pdf," source PDF pp. 45–49 (printed code pp. 34–38), preserved at https://github.com/ttbakiatwoam/cascade-data-center/blob/master/sources/cascade-zoning/Entire%20zoning%20code-1.pdf; source transcription at https://github.com/ttbakiatwoam/cascade-data-center/blob/master/dataset/cascade-zoning/CHAPTER-165-ZONING-ORDINANCE.md. The same scan labels its 2009 zero-lot-line proposal a **draft** (PDF p. 6). ↩↩↩↩↩↩

16. City of Cascade, *Ordinance 05-22*, adopted October 10, 2022, adds fitness centers as M-2 B(18), https://github.com/ttbakiatwoam/cascade-data-center/blob/master/dataset/cascade-zoning/ordinances/ORDINANCE-05-22.md; *Ordinance 19-24*, adopted September 9, 2024, amends §165.12(12), including M-2 fencing, https://github.com/ttbakiatwoam/cascade-data-center/blob/master/dataset/cascade-zoning/ordinances/ORDINANCE-19-24.md. ↩↩↩

17. Acoustical Society of America / ANSI, *ASA/ANSI S12.72-2015 (R2025), Procedure for Measuring the Ambient Noise Level in a Room*, https://webstore.ansi.org/standards/asa/asaansis12722015r2025; *ASA/ANSI S12.9-2016/Part 7 (R2025), Measurement of Low-frequency Noise and Infrasound Outdoors in the Presence of Wind and Indoors in Occupied Spaces*, https://webstore.ansi.org/standards/asa/asaansis122016partr2025. Both are measurement frameworks; neither establishes the proposed numeric Cascade limits. ↩

18. International Organization for Standardization, *ISO 1996-2:2017, Acoustics—Description, Measurement and Assessment of Environmental Noise—Part 2*, https://www.iso.org/standard/59766.html. Contains guidance on indoor environmental-noise measurement; the draft's five-foot proximity criterion is a proposed local choice. ↩

19. World Health Organization, *Guidelines for Community Noise* (1999), indoor-bedroom night-noise guidance of 30 dBA Leq, https://www.who.int/publications-detail-redirect/a68672. This guideline is not binding Iowa law. ↩

20. U.S. Department of Energy, *Building Energy Codes Program, Iowa*, https://www.energycodes.gov/status/states/iowa; Iowa Administrative Code 481—301.24, *Residential Energy Code*, https://www.legis.iowa.gov/DOCS/ACO/IAC/LINC/Rule.481.301.24.pdf; Pacific Northwest National Laboratory, *Iowa Amendments to the 2012 IECC*, https://www.pnnl.gov/main/publications/external/technical_reports/PNNL-24946Rev1.pdf. These cover energy, not building acoustics. ↩

21. Federal Highway Administration, *Noise Measurement Handbook*, §6.0, Table 6-1, FHWA-HEP-18-065 (2018), https://www.fhwa.dot.gov/Environment/noise/measurement/handbook.cfm. Typical building attenuation factors address highway traffic noise and are not site-specific industrial acoustic results. ↩

22. City of Cascade, *Code of Ordinances*, §6-12-8, "Building Code Adopted," Ordinance 02-22 (August 22, 2022), https://codelibrary.amlegal.com/codes/cascadeia/latest/cascade_ia/0-0-0-4159; U.S. Department of Energy, *Guide to Determining Climate Regions by County* (2015), https://www.energy.gov/eere/buildings/articles/building-america-best-practices-series-volume-73-guide-determining-climate. ↩

23. Federal Highway Administration, *Noise Measurement Handbook*, section 6 (building outdoor-to-indoor noise reduction), https://www.fhwa.dot.gov/Environment/noise/measurement/handbook.cfm; ASTM International, *ASTM E966*, facade field sound attenuation, https://store.astm.org/standards/e966; Iowa Supreme Court, *Singer v. City of Orange City*, No. 23-1600 (Dec. 20, 2024), https://www.iowacourts.gov/iowa-courts/supreme-court/supreme-court-opinions/case/23-1600. The City Attorney should review access and enforcement authority. ↩

24. Federal Highway Administration, *Construction Noise Handbook*, §5.3–5.4 (baseline measurement and comparable before/after locations and conditions), https://www.fhwa.dot.gov/Environment/noise/construction_noise/handbook/handbook05.cfm; *Noise Measurement Handbook*, discussion of measurement comparability and uncertainty, https://www.fhwa.dot.gov/Environment/noise/measurement/handbook.cfm; Iowa General Assembly, *Iowa Code* §657.1 (2026), nuisance and civil remedies, https://www.legis.iowa.gov/docs/code/2026/657.1.pdf. This draft evidence standard is a proposed local ordinance provision, not an established precondition to an Iowa-law nuisance claim. ↩↩

25. ASHRAE, *ANSI/ASHRAE Standard 55-2023, Thermal Environmental Conditions for Human Occupancy*, https://www.ashrae.org/technical-resources/bookstore/standard-55-thermal-environmental-conditions-for-human-occupancy; ASHRAE, *Technical FAQs*, "recommended indoor temperature and humidity levels for homes," https://www.ashrae.org/technical-resources/technical-faqs (comfort varies by humidity, clothing, activity, and season, so no universal 65–75°F required range); ASHRAE, *2023 Handbook—HVAC Applications*, ch. 49, "Noise and Vibration Control," https://handbook.ashrae.org/Handbooks/A23/SI/A23_Ch49/a23_ch49_si.aspx (document actual HVAC operating conditions and distinguish equipment from background sound). ↩

26. Iowa General Assembly, *Iowa Code* §103A.3(25) (2026), **official sustainable-design definition** (the November 11 committee wording is a paraphrase), https://www.legis.iowa.gov/docs/code/2026/103A.3.pdf; §103A.8B addresses the state sustainable-design standards program, https://www.legis.iowa.gov/docs/code/2026/103A.8B.pdf. ↩

27. City of Cascade, historical *Chapter 165 Zoning Ordinance*, §165.41(1), (8), (12), (30), and (51), repository transcription; verify current codification against the City Clerk's authoritative text. ↩

28. Iowa General Assembly, *Iowa Code* §455B.131(1)–(3), (6), (8), (11) (2026), state **air-quality** definitions, https://www.legis.iowa.gov/docs/code/2026/455B.131.pdf. ↩

29. Noncodified research reference: 86-term Iowa-law/dictionary comparison and the November 11, 2026 separate §165.41 companion draft. These references do not override adopted zoning or state law; the companion is an alternative drafting vehicle, not a second enactment. ↩

30. **Committee vote record, not codified.** Participant correction of November 11, 2026 vote: **Hyperscale Data Center** was approved **5–3**, with “100,000 square feet or larger” and “Electrical demand exceeding 60 megawatts.” Earlier project transcriptions saying **“more than 100,000”** or **“annually”** were incorrect. Exactly 100,000 square feet satisfies the size threshold; exactly 60 MW does not satisfy “exceeding.” The text does not specify a calendar year, a method of calculating electrical demand, or whether floor area means gross building area or footprint. Any substantive calendar-year measurement amendment needs a separate committee vote. See the reported November 11 record; official minutes pending. ↩↩

31. Iowa General Assembly, *Iowa Code* §§414.1–414.4 (municipal land-use zoning), §414.12 (board of adjustment and variances), and §414.23 (territory beyond city limits), https://www.legis.iowa.gov/docs/code/2026/414.1.pdf, https://www.legis.iowa.gov/docs/code/2026/414.2.pdf, https://www.legis.iowa.gov/docs/code/2026/414.12.pdf, https://www.legis.iowa.gov/docs/code/2026/414.23.pdf. Existing Cascade zoning §165.12(6) addresses uses not covered by the ordinance; the proposed express citywide prohibition is intended to prevent reclassification through that general procedure without a lawful zoning amendment. The City Attorney must review the legal basis and any existing nonconforming-use rights. ↩↩